

25CV-01031                      Onemain Financial, LLC vs. Leticia Toro

Claim of Exemption

**Appearance by judgment debtor is required.**

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25CV-02808                      TD Bank USA, N.A. vs. Ma Guarneros

Order to Show Cause Re: Monetary Sanctions

**Appearance required. Appear to show cause why the Court should not impose monetary sanctions on Plaintiff's counsel of record and Defendant for their failure to attend the case management conference on May 8, 2026, and failure to file case management conference statements.**

Case Management Conference

**Appearance required.**

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25CV-03330                      Pedro Castaneda vs. Justin Slate

Citation Civil Bench Warrant

**Appearance required.**

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25CV-03976                      Chandra Martinez vs. Marisela Duran

Citation Civil Bench Warrant

**Appearance required.**

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25CV-05371                      Bank of America, N.A. vs. Johnny Carrillo

Motion to Deem Admitted Requests for Admission

**The unopposed motion by plaintiff Bank of America, N.A., for an order deeming admitted the genuineness of any documents and the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Johnny Guadalupe Carrillo is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.**

**The Court will sign the proposed order submitted with the moving papers.**

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26CV-02160

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

**Appearance required.**

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26CV-03640

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Demurrer to Complaint

**Defendants' general demurrer to the complaint on the ground the complaint fails to allege proper notice is OVERRULED. A demurrer challenges only defects appearing on the face of the pleading or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Code Civ. Proc., § 430.30.) The complaint alleges all the necessary facts to constitute a cause of action for unlawful detainer against Defendants based on a three-day notice to pay rent or quit. (Code Civ. Proc., §§ 1161(2), 1166.)**

**Defendants' general demurrer to the complaint on the ground notice is defective under Civil Code section 1946.2, subdivision (c) is OVERRULED. The complaint asserts a cause of action for unlawful detainer under Code of Civil Procedure section 1161(2), not section 1161(3) as argued by Defendants.**

**Defendants' general demurrer to the complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action is OVERRULED for the reasons stated above.**

**Defendants' special demurrer to the complaint for uncertainty is OVERRULED. The complaint alleges all the necessary facts to constitute a cause of action for unlawful detainer against defendants and is not so vague and ambiguous that the responding party "cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed at [them]." (*Khoury v. Mally's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)**

**Defendants shall file their answer within five days of notice of entry of order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)**

**Plaintiff is directed to prepare and submit a written order for the Court's signature as required by the California Rules of Court and serve notice of entry of order on Defendants.**

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